



DECISION

Complaint No. : POS/3999/KHE/206/20

Name and Address of the Complainant : Mr. Muhammad Rehman, House No. MK-280, Laiqabad Murghi Khana, Quaidabad, Landhi, Karachi.

Name of the Agency Complained against : Malir Development Authority (MDA)

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED DEMAND OF ILLEGAL GRATIFICATION FOR MUTATION OF A PLOT NO.R-38, SECTOR 21/C, SHAH LATIF TOWN, PURCHASED BY THE COMPLAINANT AFTER VERBAL VERIFICATION OF DOCUMENTS FROM MDA.**

THE COMPLAINT

The complainant, Mr. Muhammad Rehman, submitted that officials of the Malir Development Authority (MDA) allegedly demanded illegal gratification for the mutation of Plot No. R-38, Sector 21-C, Shah Latif Town. He claimed that he had purchased the said plot after verbal verification of documents from MDA and subsequently discovered irregularities. He requested intervention of this forum for resolution of the matter and protection of his ownership rights.

PROCEEDINGS

2. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency.

3. Upon notice, MDA submitted a detailed report outlining the ownership history of the plot. The report stated that the original allotment was made to Mr. Pervaiz Ahmed through computerized balloting, later transferred to Mr. Irfan Anis, and eventually sold to Mr. Munsif Ali. The MDA report further highlighted that the complainant's documents were not valid and that the separate lease in favor of Mr. Dur Muhammad was alleged obtained fraudulently. The Department maintained that the complaint against its officials was baseless. The complainant in his rejoinder asserted that his lease deed and subsequent sale deed were genuine and lawfully executed before the Sub-Registrar. He argued that only a civil or high court had the authority to cancel registered documents, not MDA, and that the MDA's conduct is mala fide and based on concealment of facts. During the course of hearings, the Additional Director, MDA, explained that two sets of documents existed for the same plot: one originating from the original allotment made by KDA as a result of computerized balloting, and the other

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allotment created and maintained by MDA. The Agency suggested that now when the complainant possess both original files, the one created at the time of original allotment after balloting by KDA and other file created by MDA Officials later, the issue could be resolve in his favor through the official MDA record, provided that the lease deed he currently held was rescinded. The complainant, was explained the issue, and advised to comply with the suggestion of officer of MDA for resolution of his grievance. He sought time to consult with his family. The matter was adjourned for compliance and progress.

FINDINGS

4. I have examined the case file and perused correspondence, reports and rejoinders etc., and observed that:

- i. The dispute revolves around conflicting chains of title for Plot No. R-38, Sector 21-C, Shah Latif Town. While MDA maintains that certain transfers were fabricated, the complainant has obtained and produced the original registered documents in his name.
- ii. The MDA has proposed a mechanism for resolving the dispute by recognizing the complainant through its own record, subject to adjustment of his existing lease deed, since complainant possesses authentic documents which merit recognition.
- iii. Complainant has been advised to furnish the documents to MDA for resolution of his grievance.

DECISION

5. The complaint stands redressed.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 28.11.2025